

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ana Luisa Crivorot	Team: Squad #07	CCRB Case #: 201510268	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 11/16/2015 11:05 PM	Location of Incident: Inside the 104th Precinct stationhouse	18 Mo. SOL 5/16/2017	Precinct: 104
Date/Time CV Reported Tue, 11/17/2015 2:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/03/2015 1:54 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Anthony Lagares	929	926423	104 DET
2. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Oleg Matat	6169	937042	104 DET

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon his ethnicity.	A . Officer(s) Unidentified
B . DT3 Anthony Lagares	Off. Language: Det. Anthony Lagares made remarks to § 87(2)(b) based upon his ethnicity.	B . Unsubstantiated

Case Summary

On November 16, 2015, at approximately 11:05 p.m., Det. Anthony Lagares, of the 104th Precinct Detective Squad, placed § 87(2)(b) under arrest inside the 104th Precinct stationhouse, for § 87(2)(b) (Board Review 10). The 104th Precinct Detective Squad is located on the second floor of the 104th Precinct stationhouse. § 87(2)(b) asked the officers why they were treating him badly. An unidentified officer, hereto referred to as “PO1”, allegedly stated that § 87(2)(b) was “lucky to be in America” (**Allegation A**). Det. Lagares allegedly stated that § 87(2)(b) was being treated the way he was because he looked like a “terrorist” and an “Arab”, and because § 87(2)(b) is § 87(2)(b) (**Allegation B**).

§ 87(2)(b) complained that he was being harassed by officers from the 104th Precinct Detective Squad § 87(2)(g).

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation because § 87(2)(b) was arrested.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- As of January 22, 2016, § 87(2)(b) has not filed a Notice of Claim in New York City (Board Review 02).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 03).
- Det. Lagares has two prior CCRB complaints with seven allegations. None of the allegations were substantiated (Board Review 04) § 87(2)(g)
§ 87(2)(b)

Potential Issues

The Prisoner Holding Pen Roster for the 104th Precinct Detective Squad identified three individuals who shared the same cell with § 87(2)(b) and who were transported with him to the courthouse, thus rendering them potential witnesses to the alleged offensive remarks (Board Review 05). CLEAR searches were conducted and the CCRB made contact with one of the men, § 87(2)(b) however, he declined to cooperate with the investigation (Board Review 15). The CCRB attempted to contact the other two potential witnesses, § 87(2)(b) and § 87(2)(b) but was unable to reach them. Two letters were sent to § 87(2)(b) at two separate addresses, one address yielded by the CLEAR search and the other obtained from the Command Log (Board Review 19). Five calls were placed to the cell phone number on § 87(2)(b)'s arrest report and each time a voicemail was left. Calls were also placed to the two numbers revealed for § 87(2)(b) in the CLEAR search, however, one number was out of service and the other was determined not to belong to him. In regards to § 87(2)(b) three letters were sent to the address that was on the Command Log. The CLEAR search for § 87(2)(b) yielded no results and the investigation was unable to obtain a working phone number for him.

Officer Identification

Det. Anthony Lagares was identified as being involved in this incident through § 87(2)(b)'s arrest report. § 87(2)(b) further confirmed Det. Lagares' identity as a subject officer in a photo array viewing.

The investigation was unable to identify the other subject officer, PO1, in this case. § 87(2)(b) described PO1 as a dark skinned male of average build, approximately 5'10" tall, with very short black hair and black eyes. § 87(2)(g)

During his CCRB interview, Det. Lagares claimed that he was the only officer who had contact with § 87(2)(b) and did not see any other officer interact with him. Det. Lagares' memo book indicated that he only worked with one other officer, Det. Oleg Matat. Det. Matat was interviewed at the CCRB, but he did not match the description of PO1, nor was he able to name any other officer, besides Det. Lagares, who interacted with § 87(2)(b). A search of CTS indicated that only 19 officers are assigned to the 104th Precinct Detective Squad and only two of those officers, Det. Roger Webb and Det. Carl Diaquoi, are black male officers. The roll call (Board Review 06), sign in/out sheet (Board Review 16), and their memo books (Board Reviews 17 and 18) confirmed that Det. Webb and Det. Diaquoi were not working at the time of the incident.

The Prisoner Holding Pen Roster indicated that Det. Christopher Williams and Det. Todd Friedrich were guarding prisoners in the prisoner holding pen at the same time that Det. Lagares was there with § 87(2)(b) and therefore, could have had contact with § 87(2)(b). Upon viewing Det. Williams and Det. Friedrich's photographs on the MOS photo viewing machine, it was determined that neither of them were possible matches for PO1. The sign-in/out sheet indicated that Det. Friedrich signed out at around the same time that the incident would have occurred; making it unlikely that he would have participated in the incident.

Documents were also obtained from the 104th Precinct. Considering that the incident happened during a tour change, both the tour 3 roll call from November 16, 2015, and the tour 1 roll call from November 17, 2015, were obtained and analyzed (Board Review 20 and 07). Between the two tours, over 60 officers were working. § 87(2)(g)

Findings and Recommendations

Allegation A- Offensive Language: An officer made remarks to § 87(2)(b) based upon his ethnicity.

Allegation B- Offensive Language: Det. Anthony Lagares made remarks to § 87(2)(b) based upon his ethnicity.

§ 87(2)(b) provided a phone statement to IAB on November 17, 2015 (Board Review 09) and one to the CCRB on December 9, 2015 (Board Review 08). He provided a sworn statement to the CCRB on December 31, 2015 (Board Review 13).

While at the 104th Precinct stationhouse, § 87(2)(b) complained of the way he was being treated and stated that he asked PO1 and Det. Lagares why they were treating him badly. § 87(2)(b) alleged that PO1 responded, "You are lucky to be in America." § 87(2)(b)

then asked PO1 what he meant by this statement and PO1 responded, “I didn’t say you are lucky to be in America, I said you are lucky that we are in America” (Board Review 13). § 87(2)(b) § 87(2)(b) alleged that Det. Lagares gave various answers, stating that it was because § 87(2)(b) § 87(2)(b) looked like a “terrorist” and an “Arab”, and because he is § 87(2)(b) (Board Review 13).

Det. Lagares provided a sworn statement to the CCRB on January 12, 2016 (Board Review 11). He denied ever stating that § 87(2)(b) looked like a terrorist or an Arab. Det. Lagares also denied stating that he would treat § 87(2)(b) differently because he is Egyptian. He denied hearing any other officer tell § 87(2)(b) that he was “lucky to be in America,” or any variation of this statement. Det. Lagares was unable to identify any other officer who may have interacted with § 87(2)(b).

Det. Oleg Matat was identified by Det. Lagares as a potential witness officer. He provided a sworn statement to the CCRB on February 2, 2016 (Board Review 12), but did not remember interacting with the person that Det. Lagares arrested, nor did he recognize § 87(2)(b)'s photo. Det. Matat stated that he never made any comments in regards to a prisoner’s nationality and ethnicity, nor did he hear any officer do so.

§ 87(2)(g). Therefore, it is recommended that **Allegation A** be closed as **Officer Unidentified**.

§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).

§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Squad:

Investigator: _____ Ana Luisa Crivorot _____
Signature Print Date

Pod Leader: _____ Diana P. Murray _____
Title/Signature Print Date

Attorney: _____ _____
Title/Signature Print Date

